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A ‘Striking Power’

Four months after the sentence of death by the special tribunal on 7 October 1930, an English lawyer in London, D.N. Pritt KC, took a taxi to Downing Street. It was a cold wet morning on 11 February 1931. He had arrived to argue the case of Bhagat Singh and his two comrades before the judicial committee of the Privy Council, before five judges. They were headed by Viscount Dunedin with his enormous walrus moustache. If that gave the impression of geniality it was a mistaken impression, for these judges were not favourably disposed towards Pritt. They harangued him, taunted him and ridiculed him at every juncture. But the suave debonair Winchester College-educated lawyer had little choice but to appear before them as the court of last resort in the British Empire because there was no right of appeal against the sentence of death from the special tribunal to the Lahore High Court in India. Pritt began by explaining that Section 72 of the Government of India Act was unique in that ‘it creates a somewhat striking power, and . . . which any court will construe with care’, and was exercisable only ‘when the conditions are fulfilled’. This is because ‘the power it creates is a limited power of delegated legislation’, which was contingent on certain conditions being fulfilled. These were that ‘there must be a case of emergency, whatever “emergency” may mean’, but also ‘that the ordinance must be an Ordinance falling within the description that it is an Ordinance for the peace and good government of British India, or some part thereof’.[1]

In short, as D.N. Pritt KC submitted, ‘something must happen before the power comes into force at all’, and that ‘when it has come into force, that is to say when there is an emergency and the Governor-General must do